

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3683

By: Provenzano

AS INTRODUCED

An Act relating to the Oklahoma Public Employees Retirement System; amending 62 O.S. 2021, Section 3103, as last amended by Section 2, Chapter 361, O.S.L. 2025 (62 O.S. Supp. 2025, Section 3103), which relates to the Oklahoma Pension Legislation Actuarial Analysis Act; modifying definition; amending 74 O.S. 2021, Section 902, as last amended by Section 1, Chapter 280, O.S.L. 2024 (74 O.S. Supp. 2025, Section 902), which relates to definitions; modifying term; and providing effective dates.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 62 O.S. 2021, Section 3103, as last amended by Section 2, Chapter 361, O.S.L. 2025 (62 O.S. Supp. 2025, Section 3103), is amended to read as follows:

Section 3103. As used in the Oklahoma Pension Legislation Actuarial Analysis Act:

1. "Amendment" means any amendment, including a substitute bill, made to a retirement bill by any committee of the House of Representatives or Senate, any conference committee of the House or Senate or by the House or Senate;

1 2. "RB number" means that number preceded by the letters "RB"
2 assigned to a retirement bill by the respective staffs of the
3 Oklahoma State Senate and the Oklahoma House of Representatives when
4 the respective staff office prepares a retirement bill for a member
5 of the Legislature;

6 3. "Legislative Actuary" means the firm or entity that enters
7 into a contract with the Legislative Service Bureau pursuant to
8 Section 452.15 of Title 74 of the Oklahoma Statutes to provide the
9 actuarial services and other duties provided for in the Oklahoma
10 Pension Legislation Actuarial Analysis Act;

11 4. "Nonfiscal amendment" means an amendment to a retirement
12 bill having a fiscal impact, which amendment does not change any
13 factor of an actuarial investigation specified in subsection A of
14 Section 3109 of this title;

15 5. "Nonfiscal retirement bill" means a retirement bill:

- 16 a. which does not affect the cost or funding factors of a
17 retirement system,
18 b. which affects such factors only in a manner which does
19 not:
20 (1) grant a benefit increase under the retirement
21 system affected by the bill,
22 (2) create an actuarial accrued liability for or
23 increase the actuarial accrued liability of the
24 retirement system affected by the bill, or

- 1 (3) increase the normal cost of the retirement system
2 affected by the bill,
- 3 c. which authorizes the purchase by an active member of
4 the retirement system, at the actuarial cost for the
5 purchase as computed pursuant to the statute in effect
6 on the effective date of the measure allowing such
7 purchase, of years of service for purposes of reaching
8 a normal retirement date in the applicable retirement
9 system, but which cannot be used in order to compute
10 the number of years of service for purposes of
11 computing the retirement benefit for the member,
- 12 d. which provides for the computation of a service-
13 connected disability retirement benefit for members of
14 the Oklahoma Law Enforcement Retirement System
15 pursuant to Section 2-305 of Title 47 of the Oklahoma
16 Statutes if the members were unable to complete twenty
17 (20) years of service as a result of the disability,
- 18 e. which requires membership in the defined benefit plan
19 authorized by Section 901 et seq. of Title 74 of the
20 Oklahoma Statutes for persons whose first elected or
21 appointed service occurs on or after November 1, 2018,
22 if such persons had any prior service in the Oklahoma
23 Public Employees Retirement System prior to November
24 1, 2015,

1 f. which provides for a one-time increase in retirement
2 benefits if the increase in retirement benefits is not
3 a permanent increase in the gross annual retirement
4 benefit payable to a member or beneficiary, occurs
5 only once pursuant to a single statutory authorization
6 and does not exceed:

7 (1) the lesser of two percent (2%) of the gross
8 annual retirement benefit of the member or One
9 Thousand Dollars (\$1,000.00) and requires that
10 the benefit may only be provided if the funded
11 ratio of the affected retirement system would not
12 be less than sixty percent (60%) but not greater
13 than eighty percent (80%) after the benefit
14 increase is paid,

15 (2) the lesser of two percent (2%) of the gross
16 annual retirement benefit of the member or One
17 Thousand Two Hundred Dollars (\$1,200.00) and
18 requires that the benefit may only be provided if
19 the funded ratio of the affected retirement
20 system would be greater than eighty percent (80%)
21 but not greater than one hundred percent (100%)
22 after the benefit increase is paid,

23 (3) the lesser of two percent (2%) of the gross
24 annual retirement benefit of the member or One

1 Thousand Four Hundred Dollars (\$1,400.00) and
2 requires that the benefit may only be provided if
3 the funded ratio of the affected retirement
4 system would be greater than one hundred percent
5 (100%) after the benefit increase is paid, or
6 (4) the greater of two percent (2%) of the gross
7 annual retirement benefit of the volunteer
8 firefighter or One Hundred Dollars (\$100.00) for
9 persons who retired from the Oklahoma
10 Firefighters Pension and Retirement System as
11 volunteer firefighters and who did not retire
12 from the Oklahoma Firefighters Pension and
13 Retirement System as a paid firefighter.

14 As used in this subparagraph, "funded ratio" means the
15 figure derived by dividing the actuarial value of
16 assets of the applicable retirement system by the
17 actuarial accrued liability of the applicable
18 retirement system,

- 19 g. which modifies the disability pension standard for
20 police officers who are members of the Oklahoma Police
21 Pension and Retirement System as provided by Section
22 50-115 of Title 11 of the Oklahoma Statutes,
23 h. which provides a cost-of-living benefit increase
24 pursuant to the provisions of:

1 (1) Section 49-143.7 of Title 11 of the Oklahoma
2 Statutes,

3 (2) Section 50-136.9 of Title 11 of the Oklahoma
4 Statutes,

5 (3) Section 1104K of Title 20 of the Oklahoma
6 Statutes,

7 (4) Section 2-305.12 of Title 47 of the Oklahoma
8 Statutes,

9 (5) Section 17-116.22 of Title 70 of the Oklahoma
10 Statutes,

11 (6) Section 930.11 of Title 74 of the Oklahoma
12 Statutes,

13 i. which modifies the computation of the line-of-duty
14 disability benefit pursuant to the provisions of this
15 section and Sections 50-101 and 50-115 of Title 11 of
16 the Oklahoma Statutes, ~~or~~

17 j. which authorizes membership in the Oklahoma Law
18 Enforcement Retirement System for active commissioned
19 or CLEET-certified agents of the Office of the
20 Attorney General or the Military Department of the
21 State of Oklahoma pursuant to Sections ~~3~~ 2-309.9 and 4
22 2-309.10 of ~~this act~~ Title 47 of the Oklahoma
23 Statutes, or
24

1 k. which modifies the definition of military service,
2 pursuant to Section 2 of this act, to include service
3 that was performed:

4 (a) as a direct result of being inducted or of
5 first enlisting for duty on a date when the
6 federal government was actively inducting
7 persons into the Armed Forces of the United
8 States under federal draft laws,

9 (b) as a reservist or member of the national
10 guard who was ordered to duty under the
11 authority of federal law,

12 (c) during a time when the federal government
13 was actively inducting persons into the
14 armed forces under federal draft laws, or

15 (d) as a result of voluntarily entering on
16 active duty.

17 A nonfiscal retirement bill shall include any retirement bill that
18 has as its sole purpose the appropriation or distribution or
19 redistribution of monies in some manner to a retirement system for
20 purposes of reducing the unfunded liability of such system or the
21 earmarking of a portion of the revenue from a tax to a retirement
22 system or increasing the percentage of the revenue earmarked from a
23 tax to a retirement system;

1 6. "Reduction-in-cost amendment" means an amendment to a
2 retirement bill having a fiscal impact which reduces the cost of the
3 bill as such cost is determined by the actuarial investigation for
4 the bill prepared pursuant to Section 3109 of this title;

5 7. "Retirement bill" means any bill or joint resolution
6 introduced or any bill or joint resolution amended by a member of
7 the Legislature which creates or amends any law directly affecting a
8 retirement system. A retirement bill shall not mean a bill or
9 resolution that impacts the revenue of any state tax in which a
10 portion of the revenue generated from such tax is earmarked for the
11 benefit of a retirement system;

12 8. "Retirement bill having a fiscal impact" means any
13 retirement bill creating or establishing a retirement system and any
14 other retirement bill other than a nonfiscal retirement bill; and

15 9. "Retirement system" means the Teachers' Retirement System of
16 Oklahoma, the Oklahoma Public Employees Retirement System, the
17 Uniform Retirement System for Justices and Judges, the Oklahoma
18 Firefighters Pension and Retirement System, the Oklahoma Police
19 Pension and Retirement System, the Oklahoma Law Enforcement
20 Retirement System, or a retirement system established after January
21 1, 2006.

22 SECTION 2. AMENDATORY 74 O.S. 2021, Section 902, as last
23 amended by Section 1, Chapter 280, O.S.L. 2024 (74 O.S. Supp. 2025,
24 Section 902), is amended to read as follows:

1 Section 902. As used in Section 901 et seq. of this title:

2 (1) "System" means the Oklahoma Public Employees Retirement
3 System as established by Section 901 et seq. of this title and as it
4 may hereafter be amended;

5 (2) "Accumulated contributions" means the sum of all
6 contributions by a member to the System which shall be credited to
7 the member's account;

8 (3) "Act" means Sections 901 to 932, inclusive, of this title;

9 (4) "Actuarial equivalent" means a deferred income benefit of
10 equal value to the accumulated deposits or benefits when computed
11 upon the basis of the actuarial tables in use by the System;

12 (5) "Actuarial tables" means the actuarial tables approved and
13 in use by the Board at any given time;

14 (6) "Actuary" means the actuary or firm of actuaries employed
15 by the Board at any given time;

16 (7) "Beneficiary" means any person named by a member to receive
17 any benefits as provided for by Section 901 et seq. of this title.
18 If there is no beneficiary living at time of member employee's
19 death, the member's estate shall be the beneficiary;

20 (8) "Board" means the Oklahoma Public Employees Retirement
21 System Board of Trustees;

22 (9) "Compensation" means all salary and wages, as defined by
23 the Board of Trustees, including amounts deferred under deferred
24 compensation agreements entered into between a member and a

1 participating employer, but exclusive of payment for overtime,
2 payable to a member of the System for personal services performed
3 for a participating employer but shall not include compensation or
4 reimbursement for traveling, or moving expenses, or any compensation
5 in excess of the maximum compensation level, provided:

6 (a) For compensation for service prior to January 1, 1988,
7 the maximum compensation level shall be Twenty-five
8 Thousand Dollars (\$25,000.00) per annum.

9 For compensation for service on or after January 1,
10 1988, through June 30, 1994, the maximum compensation
11 level shall be Forty Thousand Dollars (\$40,000.00) per
12 annum.

13 For compensation for service on or after July 1, 1994,
14 through June 30, 1995, the maximum compensation level
15 shall be Fifty Thousand Dollars (\$50,000.00) per
16 annum; for compensation for service on or after July
17 1, 1995, through June 30, 1996, the maximum
18 compensation level shall be Sixty Thousand Dollars
19 (\$60,000.00) per annum; for compensation for service
20 on or after July 1, 1996, through June 30, 1997, the
21 maximum compensation level shall be Seventy Thousand
22 Dollars (\$70,000.00) per annum; and for compensation
23 for service on or after July 1, 1997, through June 30,
24 1998, the maximum compensation level shall be Eighty

1 Thousand Dollars (\$80,000.00) per annum. For
2 compensation for services on or after July 1, 1998,
3 there shall be no maximum compensation level for
4 retirement purposes.

5 (b) Compensation for retirement purposes shall include any
6 amount of elective salary reduction under Section 457
7 of the Internal Revenue Code of 1986 and any amount of
8 nonelective salary reduction under Section 414(h) of
9 the Internal Revenue Code of 1986.

10 (c) Notwithstanding any provision to the contrary, the
11 compensation taken into account for any employee in
12 determining the contribution or benefit accruals for
13 any plan year is limited to the annual compensation
14 limit under Section 401(a)(17) of the federal Internal
15 Revenue Code.

16 (d) Current appointed members of the Oklahoma Tax
17 Commission whose salary is constitutionally limited
18 and is less than the highest salary allowed by law for
19 his or her position shall be allowed, within ninety
20 (90) days from March 21, 2001, to make an election to
21 use the highest salary allowed by law for the position
22 to which the member was appointed for the purposes of
23 making contributions and determination of retirement
24 benefits. Such election shall be irrevocable and be

1 in writing. Reappointment to the same office shall
2 not permit a new election. Members appointed to the
3 Oklahoma Tax Commission after the March 21, 2001,
4 shall make such election, pursuant to this
5 subparagraph, within ninety (90) days of taking
6 office;

7 (10) "Credited service" means the sum of participating service,
8 prior service and elected service;

9 (11) "Dependent" means a parent, child, or spouse of a member
10 who is dependent upon the member for at least one-half (1/2) of the
11 member's support;

12 (12) "Effective date" means the date upon which the System
13 becomes effective by operation of law;

14 (13) "Eligible employer" means the state and any county, county
15 hospital, city or town, conservation districts, circuit engineering
16 districts and any public or private trust in which a county, city or
17 town participates and is the primary beneficiary, is to be an
18 eligible employer for the purpose of Section 901 et seq. of this
19 title only, whose employees are covered by Social Security and are
20 not covered by or eligible for another retirement plan authorized
21 under the laws of this state which is in operation on the initial
22 entry date. Emergency medical service districts may join the System
23 upon proper application to the Board. Provided, affiliation by a
24

1 county hospital shall be in the form of a resolution adopted by the
2 board of control.

3 (a) If a class or several classes of employees of any
4 above-defined employers are covered by Social Security
5 and are not covered by or eligible for and will not
6 become eligible for another retirement plan authorized
7 under the laws of this state, which is in operation on
8 the effective date, such employer shall be deemed an
9 eligible employer, but only with respect to that class
10 or those classes of employees as defined in this
11 section.

12 (b) A class or several classes of employees who are
13 covered by Social Security and are not covered by or
14 eligible for and will not become eligible for another
15 retirement plan authorized under the laws of this
16 state, which is in operation on the effective date,
17 and when the qualifications for employment in such
18 class or classes are set by state law; and when such
19 class or classes of employees are employed by a county
20 or municipal government pursuant to such
21 qualifications; and when the services provided by such
22 employees are of such nature that they qualify for
23 matching by or contributions from state or federal
24 funds administered by an agency of state government

1 which qualifies as a participating employer, then the
2 agency of state government administering the state or
3 federal funds shall be deemed an eligible employer,
4 but only with respect to that class or those classes
5 of employees as defined in this subsection; provided,
6 that the required contributions to the retirement plan
7 may be withheld from the contributions of state or
8 federal funds administered by the state agency and
9 transmitted to the System on the same basis as the
10 employee and employer contributions are transmitted
11 for the direct employees of the state agency. The
12 retirement or eligibility for retirement under the
13 provisions of law providing pensions for service as a
14 volunteer firefighter shall not render any person
15 ineligible for participation in the benefits provided
16 for in Section 901 et seq. of this title. An employee
17 of any public or private trust in which a county, city
18 or town participates and is the primary beneficiary
19 shall be deemed to be an eligible employee for the
20 purpose of Section 901 et seq. of this title only.

21 (c) All employees of the George Nigh Rehabilitation
22 Institute who elected to retain membership in the
23 System, pursuant to Section 913.7 of this title, shall
24 continue to be eligible employees for the purposes of

1 Section 901 et seq. of this title. The George Nigh
2 Rehabilitation Institute shall be considered a
3 participating employer only for such employees.

4 (d) All employees of CompSource Mutual Insurance Company
5 who retain membership in the Oklahoma Public Employees
6 Retirement System pursuant to Section 913.9 of this
7 title shall continue to be eligible employees for the
8 purposes of the Oklahoma Public Employees Retirement
9 System. CompSource Mutual Insurance Company shall be
10 considered a participating employer only for such
11 employees.

12 (e) All employees of a successor organization, as defined
13 by Section 5-60.12 of Title 2 of the Oklahoma
14 Statutes, who retain membership in the Oklahoma Public
15 Employees Retirement System pursuant to Section 5-
16 60.35 of Title 2 of the Oklahoma Statutes shall
17 continue to be eligible employees for the purposes of
18 the Oklahoma Public Employees Retirement System. A
19 successor organization shall be considered a
20 participating employer only for such employees.

21 (f) A participating employer of the Teachers' Retirement
22 System of Oklahoma, who has one or more employees who
23 have made an election pursuant to enabling legislation
24 to retain membership in the System as a result of

1 change in administration, shall be considered a
2 participating employer of the Oklahoma Public
3 Employees Retirement System only for such employees;

4 (14) "Employee" means any officer or employee of a
5 participating employer, whose employment is not seasonal or
6 temporary and whose employment requires at least one thousand
7 (1,000) hours of work per year and whose salary or wage is equal to
8 the hourly rate of the monthly minimum wage for state employees.
9 For those eligible employers outlined in Section 910 of this title,
10 the rate shall be equal to the hourly rate of the monthly minimum
11 wage for that employer. Each employer, whose minimum wage is less
12 than the state's minimum wage, shall inform the System of the
13 minimum wage for that employer. This notification shall be by
14 resolution of the governing body.

15 (a) Any employee of the county extension agents who is not
16 currently participating in the Teachers' Retirement
17 System of Oklahoma shall be a member of this System.

18 (b) Eligibility shall not include any employee who is a
19 contributing member of the United States Civil Service
20 Retirement System.

21 (c) It shall be mandatory for an officer, appointee or
22 employee of the office of district attorney to become
23 a member of this System if he or she is not currently
24 participating in a county retirement system. Provided

1 further, that if an officer, appointee or employee of
2 the office of district attorney is currently
3 participating in such county retirement system, he or
4 she is ineligible for this System as long as he or she
5 is eligible for such county retirement system. Any
6 eligible officer, appointee or employee of the office
7 of district attorney shall be given credit for prior
8 service as defined in this section. The provisions
9 outlined in Section 917 of this title shall apply to
10 those employees who have previously withdrawn their
11 contributions.

12 (d) Eligibility shall also not include any officer or
13 employee of the Oklahoma Employment Security
14 Commission, except for those officers and employees of
15 the Commission electing to transfer to this System
16 pursuant to the provisions of Section 910.1 of this
17 title or any other class of officers or employees
18 specifically exempted by the laws of this state,
19 unless there be a consolidation as provided by Section
20 912 of this title. Employees of the Oklahoma
21 Employment Security Commission who are ineligible for
22 enrollment in the Oklahoma Employment Security
23 Commission Retirement Plan, that was in effect on
24 January 1, 1964, shall become members of this System.

- (e) Any employee employed by the Legislative Service Bureau, Senate or House of Representatives for the full duration of a regular legislative session shall be eligible for membership in the System regardless of classification as a temporary employee and may participate in the System during the regular legislative session at the option of the employee. For purposes of this subparagraph, the determination of whether an employee is employed for the full duration of a regular legislative session shall be made by the Legislative Service Bureau if such employee is employed by the Legislative Service Bureau, the Senate if such employee is employed by the Senate, or by the House of Representatives if such employee is employed by the House of Representatives. Each regular legislative session during which the legislative employee or an employee of the Legislative Service Bureau participates full time shall be counted as six (6) months of full-time participating service.
- (i) Except as otherwise provided by this subparagraph, once a temporary session employee makes a choice to participate or not, the choice shall be binding for all future legislative sessions during which the employee is employed.

1 (ii) Notwithstanding the provisions of division (i) of
2 this subparagraph, any employee, who is eligible
3 for membership in the System because of the
4 provisions of this subparagraph and who was
5 employed by the Senate or House of
6 Representatives after January 1, 1989, may file
7 an election, in a manner specified by the Board,
8 to participate as a member of the System prior to
9 September 1, 1989.

10 (iii) Notwithstanding the provisions of division (i) of
11 this subparagraph, a temporary legislative
12 session employee who elected to become a member
13 of the System may withdraw from the System
14 effective the day such employee elected to
15 participate in the System upon written request to
16 the Board. Any such request must be received by
17 the Board prior to October 1, 1990. All employee
18 contributions made by the temporary legislative
19 session employee shall be returned to the
20 employee without interest within four (4) months
21 of receipt of the written request.

22 (iv) A member of the System who did not initially
23 elect to participate as a member of the System
24 pursuant to this subparagraph shall be able to

1 acquire service performed as a temporary
2 legislative session employee for periods of
3 service performed prior to the date upon which
4 the person became a member of the System if:

- 5 a. the member files an election with the System
6 not later than December 31, 2000, to
7 purchase the prior service; and
- 8 b. the member makes payment to the System of
9 the actuarial cost of the service credit
10 pursuant to subsection A of Section 913.5 of
11 this title. The provisions of Section 913.5
12 of this title shall be applicable to the
13 purchase of the service credit, including
14 the provisions for determining service
15 credit in the event of incomplete payment
16 due to cessation of payments, death,
17 termination of employment or retirement, but
18 the payment may extend for a period not to
19 exceed ninety-six (96) months;

20 (15) "Entry date" means the date on which an eligible employer
21 joins the System. The first entry date pursuant to Section 901 et
22 seq. of this title shall be January 1, 1964;

1 (16) "Executive Director" means the managing officer of the
2 System employed by the Board under Section 901 et seq. of this
3 title;

4 (17) "Federal Internal Revenue Code" means the federal Internal
5 Revenue Code of 1954 or 1986, as amended and as applicable to a
6 governmental plan as in effect on July 1, 1999;

7 (18) "Final average compensation" means the average annual
8 compensation, including amounts deferred under deferred compensation
9 agreements entered into between a member and a participating
10 employer, up to, but not exceeding the maximum compensation levels
11 as provided in paragraph (9) of this section received during the
12 highest three (3) of the last ten (10) years of participating
13 service immediately preceding retirement or termination of
14 employment and with respect to members whose first participating
15 service occurs on or after July 1, 2013, the compensation received
16 during the highest five (5) of the last ten (10) years of
17 participating service immediately preceding retirement or
18 termination of employment. Provided, no member shall retire with a
19 final average compensation unless the member has made the required
20 contributions on such compensation, as defined by the Board of
21 Trustees;

22 (19) "Fiscal year" means the period commencing July 1 of any
23 year and ending June 30 of the next year. The fiscal year is the
24 plan year for purposes of the federal Internal Revenue Code;

1 however, the calendar year is the limitation year for purposes of
2 Section 415 of the federal Internal Revenue Code;

3 (20) "Fund" means the Oklahoma Public Employees Retirement Fund
4 as created by Section 901 et seq. of this title;

5 (21) "Leave of absence" means a period of absence from
6 employment without pay, authorized and approved by the employer and
7 acknowledged to the Board, and which after the effective date does
8 not exceed two (2) years;

9 (22) "Member" means an eligible employee or elected official
10 who is in the System and is making the required employee or elected
11 official contributions, or any former employee or elected official
12 who shall have made the required contributions to the System and
13 shall have not received a refund or withdrawal;

14 (23) "Military service" means service in the Armed Forces of
15 the United States by an honorably discharged person ~~during the~~
16 ~~following time periods~~, as reflected on such person's Defense
17 Department Form 214, not to exceed five (5) years for combined
18 participating and/or prior service, ~~as follows~~ that was performed:

19 (a) ~~during the following periods, including the beginning~~
20 ~~and ending dates, and only for the periods served,~~
21 ~~from:~~

22 ~~(i) April 6, 1917, to November 11, 1918, commonly~~
23 ~~referred to as World War I,~~
24

- ~~(ii) September 16, 1940, to December 7, 1941, as a member of the 45th Division,~~
- ~~(iii) December 7, 1941, to December 31, 1946, commonly referred to as World War II,~~
- ~~(iv) June 27, 1950, to January 31, 1955, commonly referred to as the Korean Conflict or the Korean War,~~
- ~~(v) February 28, 1961, to May 7, 1975, commonly referred to as the Vietnam era, except that:~~
- ~~a. for the period from February 28, 1961, to August 4, 1964, military service shall only include service in the Republic of Vietnam during that period, and~~
- ~~b. for purposes of determining eligibility for education and training benefits, such period shall end on December 31, 1976, or~~
- ~~(vi) August 1, 1990, to December 31, 1991, commonly referred to as the Gulf War, the Persian Gulf War, or Operation Desert Storm, but excluding any person who served on active duty for training only, unless discharged from such active duty for a service-connected disability,~~
- ~~(b) during a period of war or combat military operation other than a conflict, war or era listed in~~

~~subparagraph (a) of this paragraph, beginning on the date of Congressional authorization, Congressional resolution, or Executive Order of the President of the United States, for the use of the Armed Forces of the United States in a war or combat military operation, if such war or combat military operation lasted for a period of ninety (90) days or more, for a person who served, and only for the period served, in the area of responsibility of the war or combat military operation, but excluding a person who served on active duty for training only, unless discharged from such active duty for a service-connected disability, and provided that the burden of proof of military service during this period shall be with the member, who must present appropriate documentation establishing such service.~~

~~An eligible member under this paragraph shall include only those persons who shall have served during the times or in the areas prescribed in this paragraph, and only if such person provides appropriate documentation in such time and manner as required by the System to establish such military service prescribed in this paragraph, or for service pursuant to subdivision a of division (v) of subparagraph (a) of this paragraph those persons who were awarded~~

~~service medals, as authorized by the United States~~
~~Department of Defense as reflected in the veteran's Defense~~
~~Department Form 214, related to the Vietnam Conflict for~~
~~service prior to August 5, 1964~~ as a direct result of being
inducted or of first enlisting for duty on a date when the
federal government was actively inducting persons into the
Armed Forces of the United States under federal draft laws,
(b) as a reservist or member of the national guard who was
ordered to duty under the authority of federal law,
(c) during a time when the federal government was actively
inducting persons into the armed forces under federal
draft laws, or
(d) as a result of voluntarily entering on active duty.

Military service that is terminated by sentence of a court-martial
is not creditable;

(24) "Normal retirement date" means the date on which a member
may retire with full retirement benefits as provided in Section 901
et seq. of this title, such date being whichever occurs first:

(a) the first day of the month coinciding with or
following a member's:

(1) sixty-second birthday with respect to members
whose first participating service occurs prior to
November 1, 2011, or

1 (2) sixty-fifth birthday with respect to members
2 whose first participating service occurs on or
3 after November 1, 2011, or with respect to
4 members whose first participating service occurs
5 on or after November 1, 2011, who reach a minimum
6 age of sixty (60) years and who also reach a
7 normal retirement date pursuant to subparagraph c
8 of this paragraph,

9 (b) for any person who initially became a member prior to
10 July 1, 1992, and who does not reach a normal
11 retirement date pursuant to division (1) of
12 subparagraph (a) of this paragraph, the first day of
13 the month coinciding with or following the date at
14 which the sum of a member's age and number of years of
15 credited service total eighty (80); such a normal
16 retirement date will also apply to any person who
17 became a member of the sending system as defined in
18 Section 901 et seq. of this title, prior to July 1,
19 1992, regardless of whether there were breaks in
20 service after July 1, 1992,

21 (c) for any person who became a member after June 30,
22 1992, but prior to November 1, 2011, and who does not
23 reach a normal retirement date pursuant to division
24 (1) of subparagraph (a) of this paragraph, the first

1 day of the month coinciding with or following the date
2 at which the sum of a member's age and number of years
3 of credited service total ninety (90),

4 (d) in addition to subparagraphs (a), (b) and (c) of this
5 paragraph, the first day of the month coinciding with
6 or following a member's completion of at least twenty
7 (20) years of full-time-equivalent employment as:

8 (i) a correctional or probation and parole officer
9 with the Department of Corrections and at the
10 time of retirement, the member was a correctional
11 or probation and parole officer with the
12 Department of Corrections,

13 (ii) a correctional officer, probation and parole
14 officer or fugitive apprehension agent with the
15 Department of Corrections who is in such position
16 on June 30, 2004, or who is hired after June 30,
17 2004, and who receives a promotion or change in
18 job classification after June 30, 2004, to
19 another position in the Department of
20 Corrections, so long as such officer or agent has
21 at least five (5) years of service as a
22 correctional officer, probation and parole
23 officer or fugitive apprehension agent with the
24 Department, has twenty (20) years of full-time-

1 equivalent employment with the Department and was
2 employed by the Department at the time of
3 retirement,

4 (iii) a firefighter with the Military Department of the
5 State of Oklahoma either employed for the first
6 time on or after July 1, 2002, or who was
7 employed prior to July 1, 2002, in such position
8 and who makes the election authorized by division
9 (2) of subparagraph b of paragraph (9) of
10 subsection A of Section 915 of this title and at
11 the time of retirement, the member was a
12 firefighter with the Military Department of the
13 State of Oklahoma, and such member has at least
14 twenty (20) years of credited service upon which
15 the two and one-half percent (2 1/2%) multiplier
16 will be used in calculating the retirement
17 benefit,

18 (iv) a public safety officer employed by the Grand
19 River Dam Authority for the first time on or
20 after July 1, 2016,

21 (v) a deputy sheriff or jailer employed by any county
22 that is a participating employer in the System
23 for the first time as a deputy sheriff or jailer
24 on or after November 1, 2020, or

(vi) beginning November 1, 2024, a deputy sheriff or jailer employed by any county that is a participating employer in the System for the first time as a deputy sheriff or jailer before November 1, 2020, including those who make the election authorized by division (2) of subparagraph b of paragraph (10) of subsection A of Section 915 of this title, and at the time of retirement, if the member was a deputy sheriff or jailer employed by the participating county, and such member has at least twenty (20) years of credited service upon which the two and one-half percent (2 1/2%) multiplier will be used in calculating the retirement benefit,

(e) for those fugitive apprehension agents who retire on or after July 1, 2002, the first day of the month coinciding with or following a member's completion of at least twenty (20) years of full-time-equivalent employment as a fugitive apprehension agent with the Department of Corrections and at the time of retirement, the member was a fugitive apprehension agent with the Department of Corrections, or

(f) for any member who was continuously employed by an entity or institution within The Oklahoma State System

1 of Higher Education and whose initial employment with
2 such entity or institution was prior to July 1, 1992,
3 and who without a break in service of more than thirty
4 (30) days became employed by an employer participating
5 in the Oklahoma Public Employees Retirement System,
6 the first day of the month coinciding with or
7 following the date at which the sum of the member's
8 age and number of years of credited service total
9 eighty (80);

10 (25) "Participating employer" means an eligible employer who
11 has agreed to make contributions to the System on behalf of its
12 employees;

13 (26) "Participating service" means the period of employment
14 after the entry date for which credit is granted a member.
15 Provided, on or after the effective date of this act, military
16 service credit purchased under Section 913.8 of this title shall
17 only be considered "participating service" if such service is
18 immediately preceded by a period of employment with a participating
19 employer and followed by a return to service as an employee with the
20 same or another participating employer within ninety (90) days
21 immediately following discharge from such military service;

22 (27) "Prior service" means the period of employment of a member
23 by an eligible employer prior to the member's entry date for which
24 credit is granted a member under Section 901 et seq. of this title.

1 Provided, on or after the effective date of this act, "prior
2 service" shall also include service purchased under Section 913.8 of
3 this title which does not meet the requirements of paragraph 26 of
4 this section;

5 (28) "Retirant" or "retiree" means a member who has retired
6 under the System;

7 (29) "Retirement benefit" means a monthly income with benefits
8 accruing from the first day of the month coinciding with or
9 following retirement and ending on the last day of the month in
10 which death occurs or the actuarial equivalent thereof paid in such
11 manner as specified by the member pursuant to Section 901 et seq. of
12 this title or as otherwise allowed to be paid at the discretion of
13 the Board;

14 (30) "Retirement coordinator" means the individual designated
15 by each participating employer through whom System transactions and
16 communication shall be directed;

17 (31) "Social Security" means the old-age survivors and
18 disability section of the federal Social Security Act;

19 (32) "Total disability" means a physical or mental disability
20 accepted for disability benefits by the federal Social Security
21 System;

22 (33) "Service-connected disability benefits" means military
23 service benefits which are for a service-connected disability rated
24

1 at twenty percent (20%) or more by the Veterans Administration or
2 the Armed Forces of the United States;

3 (34) "Elected official" means a person elected to a state
4 office in the legislative or executive branch of state government or
5 a person elected to a county office for a definite number of years
6 and shall include an individual who is appointed to fill the
7 unexpired term of an elected state official;

8 (35) "Elected service" means the period of service as an
9 elected official;

10 (36) "Limitation year" means the year used in applying the
11 limitations of Section 415 of the Internal Revenue Code of 1986,
12 which year shall be the calendar year; and

13 (37) "Public safety officers of the Grand River Dam Authority"
14 means those persons hired by the Grand River Dam Authority on or
15 after March 21, 2001, who are certified by the Council on Law
16 Enforcement Education and Training or an equivalent certifying
17 entity for law enforcement personnel training and who perform law
18 enforcement functions as part of their regularly assigned duties and
19 responsibilities on a full-time basis. With respect to any public
20 safety officer hired by the Grand River Dam Authority on or after
21 March 21, 2001, any earned benefits or credits toward retirement
22 benefits from previous participation within the Oklahoma Public
23 Employees Retirement System or the Oklahoma Law Enforcement
24 Retirement System shall remain within that system.

1 SECTION 3. Section 1 of this act shall become effective October
2 1, 2026.

3 SECTION 4. Section 2 of this act shall become effective
4 November 1, 2026.

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6 60-2-15134 CMA 01/08/26

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THOMAS E. CUMMINS CONSULTING ACTUARY, INC.

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January 13, 2026

Representative Provenzano

Room 543

Re: RBH No. 15134

RBH No. 15134 changes the time periods of military service that are eligible for service credit in OPERS. The current law is wartime periods. This bill would change the definition to any military service. The maximum military service credit of 5 years.

RBH No. 15134 also amends OPLAAA to define the above change to non fiscal.

RBH No. 15134 is a non fiscal bill as defined by OPLAAA as amended.

I am a member of the American Academy of Actuaries and meet the Qualification Standards of the American Academy of Actuaries to render the actuarial opinion herein.

Thomas E. Cummins

Thomas E. Cummins, MAAA